BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION,** and DOES 1 through 10, inclusive, Defendants.	**Case No. 2:26-cv-02881-DAD-SCR** **ATTACHMENT A TO RULE 45 SUBPOENA TO FIRST ADVANTAGE BACKGROUND SERVICES CORP.** Assigned to Hon. Dale A. Drozd Magistrate Judge Sean C. Riordan

Attachment A Document Requests and Production Instructions

Consumer identification

Name: Brendan Ngehsi Newanforbi

Date of birth: September 16, 1996

Email used for the application: bnn.cdl@gmail.com

Client or employer: FEDEX GROUND HR / Federal Express Corporation

Application completed: on or about January 8, 2025

Pre-adverse-action notice: on or about March 10, 2025

Final adverse action: on or about March 19, 2025

Definitions and instructions

- Report means every consumer report, investigative consumer report, background-screening result, component result, attachment, source record, updated report, score, status, and adjudication result concerning the identified consumer and the FedEx screening described above.
- Produce records as kept in the ordinary course of business. Produce searchable PDFs for documents and reasonably usable native files for spreadsheets, databases, structured exports, and audit logs. Preserve metadata showing creation, modification, access, transmission, and status-change dates.
- Personal identifiers may be transmitted through a secure portal or encrypted transfer. No records concerning another consumer are requested.
- If any responsive record no longer exists, produce any retention, deletion, purge, or destruction record sufficient to identify what was removed and when.

- Production may be made by secure electronic transfer to bnn.cdl@gmail.com. Please contact Plaintiff at (209) 801-4442 to arrange a secure transfer if necessary.

Documents to be produced

REQUEST NO. 1: The complete Report exactly as furnished or made available to FEDEX GROUND HR or Federal Express Corporation, including every version, page, component, attachment, warning, disclaimer, score, status, and adjudication result.

REQUEST NO. 2: Every source record, raw result, data return, screenshot, link, or underlying hit used to create the Report, including records referencing NSOPW, a national sex-offender-registry search, the California Sex Offender Registry, California's Megan's Law website, Penal Code section 220(a)(1), or registration status.

REQUEST NO. 3: All records identifying the source, vendor, database, jurisdiction, query, search term, search date, retrieval method, and chain of transmission for each criminal-history or sex-offender-registry component of the Report.

REQUEST NO. 4: The complete order record and client configuration for the screening, including products and packages ordered, search components, adjudication criteria, client-specific rules, instructions, and result or eligibility codes applied.

REQUEST NO. 5: All audit logs showing when the screening was ordered, searched, completed, changed, delivered, displayed, accessed, opened, downloaded, or transmitted, including the identity or account identifier of each FedEx or First Advantage user involved.

REQUEST NO. 6: All communications with FEDEX GROUND HR, Federal Express Corporation, or any FedEx-affiliated user concerning the consumer, the application, the Report, any component result, adjudication, pre-adverse action, final adverse action, dispute, or reinvestigation.

REQUEST NO. 7: Every pre-adverse-action and final adverse-action notice generated, transmitted, hosted, or maintained by First Advantage, including all enclosures, rights summaries, report copies, transmission records, delivery records, portal-access logs, and expiration records.

REQUEST NO. 8: Every disclosure, authorization, consent, certification, request-for-copy record, and record showing whether or when a copy of the Report was provided or made available to the consumer.

REQUEST NO. 9: Every record reflecting any manual review, quality-control review, matching decision, suppression, dispute, reinvestigation, correction, update, or communication concerning the Report.

REQUEST NO. 10: Every nonprivileged warning, disclaimer, compliance notice, instruction, or term supplied to FedEx with the Report concerning permissible or prohibited employment use of criminal-history or sex-offender-registry information, including California Penal Code section 290.46.

REQUEST NO. 11: Records sufficient to identify every person or organizational unit at First Advantage that collected, reviewed, approved, transmitted, or maintained the Report.

REQUEST NO. 12: The consumer's complete file maintained by First Advantage concerning the March 2025 FedEx screening, including the recipients of each report or file disclosure.

Optional custodian certification

If First Advantage elects to provide one, Plaintiff requests a declaration from a qualified records custodian authenticating the production under Federal Rules of Evidence 803(6), 902(11), and 902(13). This request does not require creation of a declaration if First Advantage does not ordinarily provide one.